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File No.: EXP202211827

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Ms. A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 03/11/22. The complaint is directed against the individual identified as B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

“has installed a camera in her home that is oriented towards the public road and the entrance of the complainant's home, without any administrative authorization for this and without being properly signposted.”

She provides images of the camera's location (Documentary Annex I).

SECOND: Upon consulting the database of this Agency, it is confirmed that a prior complaint regarding the same facts was processed under ***PROCEDIMIENTO.1, and this agency informed her in an informative letter about the obligation to regularize the system in question, which was duly notified in a timely manner to the address provided.

THIRD: The aforementioned initiation agreement was notified in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and no response was received from the respondent regarding the facts subject to the accusation for the alleged infringement of Articles 5 and 13 of the GDPR.

Upon consulting the database of this Agency, it is noted that there were two attempts at administrative notification, although it is recorded as , leaving a receipt for legal purposes.

FOURTH: On 06/03/23, the instructor of the procedure agreed to carry out the following tests with the State Security Forces and Corps—Civil Guard Post ***LOCALIDAD.1—transfer to the scene of the events to verify the presence of security cameras, the presence of an informative sign, and any other relevant aspect at the discretion of the acting force.

FIFTH: On 29/03/23, a letter was received from the DGP GC (Civil Guard - Command of Valladolid) stating that upon arrival at the scene, they confirmed the presence of two cameras, one in a public space installed on the façade and oriented towards the access door of the residence, and another in a private area affecting the terrace of the neighboring complainant.

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“Does not possess any approved sign informing of the presence of the cameras.”

SIXTH: On 26/05/23, a was issued proposing a fine of €1500 for the infringement of Articles 5 and 13 of the GDPR, considering the presence of a video surveillance system clearly oriented towards the complainant's property, without being properly signposted, with the same being recorded as delivered on 02/06/23 as certified by the Official Postal Service.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. A complaint dated 03/11/22 is recorded, through which the following main fact is conveyed:

“has installed a camera in her home that is oriented towards the public road and the entrance of the complainant's home, without any administrative authorization for this and without being properly signposted.”

Second: B.B.B. is identified as the main responsible party for the system, with associated DNI

***NIF.1.

Third: The presence of a camera installed at the top of the façade of the residence is recorded, oriented perpendicular to the access door of the complainant's home.

Fourth: It is not recorded that the system has an informative sign indicating that it is a "video-monitored area," with indication of the data controller, the way to exercise rights under current regulations, or the purpose of the system, despite at least one of the cameras affecting a public transit area (sidewalk of the façade).

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In the present case, we proceed to examine the complaint filed with this AEPD, through which it is reported the "presence of cameras without informing that affect their private sphere and/or public area" without justified cause.

Article 5.1 c) of the GDPR provides as follows: Personal data shall be:

"adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization').

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be directed towards the private space, avoiding intimidating neighboring residents with such devices, as well as monitoring areas of transit without justified cause. Neither can images of public space be obtained with such devices, as this is the exclusive competence of the State Security Forces and Corps.

It is worth noting that even in the case of a "simulated" camera, it must be preferably directed towards private space, since it is considered that such devices may affect the privacy of third parties, who feel intimidated by it under the belief of being subject to permanent recording.

Individuals cannot install devices for obtaining images of public space and/or transit of third parties, outside the cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the holder in such a way that they do not affect the area of third parties who feel intimidated by them, as this affects their area of free transit.

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III

In accordance with the evidence available in this sanctioning procedure, it is considered that the complained party has a poorly oriented video surveillance system that affects the rights of third parties and/or public space, processing personal data.

The known facts constitute an infringement attributable to the complained party for violation of the content of Article 5.1 c) of the GDPR.

Article 72, paragraph 1, letter a) establishes a limitation period of three years for “infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

“a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

IV

The complaint reflects the claimant's statement regarding the absence of an informative sign indicating that it is a video-monitored area.

“The information duty established in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the responsible party, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679.

An internet connection code or address to this information may also be included in the informative device” (*the bold text belongs to this agency)—Article 22, paragraph 4 of the LOPDGDD.

The aforementioned facts imply an infringement of the content of Article 13 of the GDPR, due to the lack of informative sign(s) with an effective address to which one could direct or indicate, if applicable, the main responsible party for the processing of the data.

Article 13 of the GDPR “Information to be provided when personal data are obtained from the data subject”

1. When personal data relating to a data subject are obtained from that data subject, the data controller shall provide all the information indicated below at the time of obtaining such data: a) the identity and contact details of the controller and, where applicable, of its representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 72, paragraph 1 of the LOPDGDD (LO 3/2018, December 5) regarding the limitation period for very serious infringements “shall prescribe after three years” and in particular the following:

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h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

V

Article 83.5 of the GDPR states the following: “Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...).

b) The rights of the data subjects under Articles 12 to 22 (...).

When justifying the sanction, the poor orientation of the installed cameras is taken into account, which confirms an infringement of the rights of third parties, considering the conduct as grossly negligent since this agency had informed them of the need to regularize the system, which justifies a fine of 1500€ (1000€ + 500€) for the infringement of Articles 5.1 c) and 13 of the GDPR, due to having a poorly oriented video surveillance system and lacking the necessary information regarding it, with the sanction placed in the lower scale for this type of conduct.

VI

The text of the resolution establishes what the committed infringements were and the facts that led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A., with NIF ***NIF.1, for an infringement of Article 5.1.c) and 13 of the GDPR, classified under Article 83.5 letters a) and b) of the GDPR, a fine of 1500€ (One thousand five hundred euros).

SECOND: TO NOTIFY this resolution to A.A.A..

THIRD: TO ORDER A.A.A., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 10 business days, to prove that they have proceeded with the removal and/or reorientation of the cameras (providing photographic evidence with date and

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hour), as well as in the event of maintaining them, that it has an information sign adjusted to the regulations in force.

FOURTH: To warn the sanctioned party that they must comply with the imposed sanction once this resolution becomes executive, in accordance with the provisions of art. 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in art. 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to art. 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXX-XXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed during the executive period.

Upon receiving the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, both inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, both inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with the documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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